

If someone says a word or phrase that can be considered hate speech, should there be an attachable punishment to those that use this word or phrase? What would happen to say, a college campus if the lot of terms that are considered 'bad' were no longer able to be used at all? Chemerinsky and Gillman address this issue—they speak on the topic of *speech codes*—rules that governments have set for their people, attempting to protect them against hate speech. More importantly they argue that "there are strong reasons why campuses should resist the calls to censor and punish people who express ideas considered to be offensive, hateful, or demeaning" (*Free Speech on Campus*, 83). They focus on how the implementation of these codes can be too vague, which can cause more harm than anticipated; how protecting hate speech is better than letting governments absorb the power to punish whoever they want, and how censoring words will lead to censoring ideas.

Chemerinsky and Gillman emphasize how codes issued by governments and campuses to protect against hate speech have shown to be "vague and overbroad". (83) When a rule is too broad, it risks including, and therefore affecting, people that were not necessarily in the intended scope of interest. They go on to emphasize how rules that seek to limit the speech of a particular person or group, needs to be as specific as possible in regards to what words can no longer be said. If not, then this will lead to people being scared to speak on their (potentially controversial) beliefs and ideas; they will be scared of being punished "based on unclear standards." (*Free Speech on Campus*, 83)

What's worse—having someone say something offensive to you, or—keeping in mind you may say the same thing in a different (and more appropriate) context, being punished if you or anyone else says this 'thing'? On one hand there is a world where people get to say what they want—this includes those that will inevitably say things that not everyone wants to hear, and for

good reason; and on the other hand, a world where people are told what to say by those that hold power over them, e.g., governments, religions, etc.

Lastly, but arguably the most important reason, is to argue against those stating that hate speech has no place in the “legitimate expression of ideas”. (87) Speech codes can cause the “censorship of words, which inevitably leads to the censorship of ideas”. (*Free Speech on Campus*, 87) Sure, college campuses should be able to ban the use of certain words, but as Chemerinsky and Gillman addressed how the words being banned are words that are used in everyday conversation with no malicious intent—again, context is everything here. They also add how these words can be used for scholarly research and analysis. To end with the words of the wise, “...there is simply no way to regulate hate speech without censoring ideas.” (*Freedom of Speech on Campus*, 68)